

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JENNIFER WEI CHENG,

Petitioner

VS.

TOM YEY,

Respondent

) Case Number: FDI-25-801487

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: BIFURCATE AND TERMINATE MARITAL STATUS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Jennifer Wei Cheng (Mother) and Respondent Tom Yeh (Father) married on 11/3/2003. Mother contends the parties separated on 12/20/2020, for a marriage of 16 years and 1 month. Father contends the parties separated on 5/16/2025, for a marriage of 21 years and 6 months. The parties have two minor children, Hampton (DOB: 11/22/2008, age 17) and Harrington (DOB: 8/28/2010). Mother is represented by attorney Leon Jew. Father is self-represented.
- 2) On for hearing is Mother's Request for Order filed 2/17/2026 asking the Court to bifurcate and terminate the parties' marital status. The Court notes that in the Request for Separate Trial (FL-315) attached to her Request for Order, Mother included no information under the prompt, "All pension or retirement plans in which the community has an interest are listed below or on attachment 1e(2)." However, the Court also notes that on 9/29/2025, Mother filed a Response to Father's Request for Form Interrogatories, Set One. Mother attached to this pleading a Schedule of Assets and Debts signed by Mother under penalty of perjury which only lists the following

1 items under the section for “retirement and pensions”: Madison IRA (“SP”) and Madison Roth
2 (“SP”). Mother also stated in this pleading that tax returns for 2023 and 2024 “were not filed yet
3 due to Asking Party’s lack of cooperation to fully disclose his income.”

4 3) On 2/25/2026, Mother filed a Supplemental Declaration stating she would like her former name
5 restored to “Jennifer Wei Cheng.”

6 4) On 4/9/2026, Father filed a Responsive Declaration asking the Court to deny Mother’s request.
7 Father states Mother has “never produced any tax returns, paystubs, or account statements
8 required for the Preliminary Declaration of Disclosure.” Father also states, “Petitioner lists 2
9 pensions in her Schedule of Assets & Debts and has not joined those plans to this action. I request
10 that they be joined and that I be named beneficiary of both plans.” Father further states,
11 “Respondent to be assigned & granted a 50% interest in Petitioner’s Madison IRA & Madison
12 Roth (listed on Petitioner’s Schedule of Assets & Debts dated 7/21/2025).” Father also asks the
13 Court to order Mother to “restore and pay for Respondent’s health insurance,” and order Mother
14 to “return to my mother the property described in my supporting Declaration. Petitioner does not
15 deny this property belongs to my mother.” The Court notes that although Father references a
16 supporting declaration in his Responsive Declaration, no supporting declaration is attached to
17 Father’s Responsive Declaration nor was a supporting declaration separately filed.

18 5) At the prior 4/16/2026 hearing, the Court set a future hearing date of 6/30/2026 and ordered
19 Mother to file and serve: (a) an updated Request for Separate Trial (FL-315) which lists any and
20 all pension or retirement plans in which the community has an interest or which states “none,” (b)
21 an updated Schedule of Assets and Debts (FL-142) which includes as an attachment the latest
22 statements for each financial account included, and (c) an updated Income and Expense
23 Declaration (FL-150) which includes as an attachment Mother’s last two months of paystubs.

24 6) On 6/15/2026, Mother filed and served an update declaration, an updated Income and Expense
25 Declaration, an updated Declaration Regarding Service of Preliminary Declaration of Disclosure,
26 and proofs of service indicating service of these documents on Father. Mother states that she has
27 “available statements for some financial accounts.” Mother states that Father has not produced his
28 financial disclosures or responded to her requests for discovery.
29

1 7) On 6/23/2026, Father filed a Declaration stating that he still has incomplete information regarding
2 Mother's income and assets and that the parties' date of separation remains in dispute. Father
3 states, "The Court previously considered Petitioner's request for bifurcation and determined that
4 additional disclosure was required before such relief should be granted. Petitioner now asks the
5 Court to grant the same relief while the ordered disclosure process remains materially incomplete.
6 Granting bifurcation under these circumstances would effectively reward incomplete compliance
7 and deprive me of information necessary to protect my rights regarding property characterization,
8 tax liabilities, retirement assets, digital assets, reimbursement claims, and the disputed date of
9 separation." Father asks the Court to make the following orders:

- 10 a. Deny the request without prejudice or continue it for approximately 30 days and
11 direct Mother to serve, within 10 days, the following limited materials necessary to
12 complete the disclosure record and frame appropriate protective orders:
- 13 i. A rental schedule for each income-producing property showing gross
14 receipts, cash expenses, debt service, and net income;
 - 15 ii. Two years of profit-and-loss statements for each self-employed business,
16 or the applicable Schedule C from the latest filed return, together with
17 identification of the business producing the income reported on FL-150;
 - 18 iii. A written identification of each federal and state tax year filed or unfiled
19 since 2022, copies of all returns filed within the applicable disclosure
20 period, and records sufficient to explain the disclosed 2023 Franchise
21 Tax Board liability;
 - 22 iv. Current complete statements, account-opening applications, initial-
23 funding records, Forms 5498 and 1099-R, and reasonably available
24 contribution, rollover, transfer, transaction-history, and tracing records
25 for the Madison IRA, Madison Roth IRA, Fidelity, Coinbase, Kraken,
26 Prana Trust, and each other account for which separate-property status is
27 asserted; and
28
29

v. A complete list of all retirement plans and IRAs, current balances, plan administrators or custodians, and beneficiary designations, so the Court can determine joinder and provisional-order requirements.

b. If the Court grants bifurcation now, the Court should enter a written order, including Judicial Council forms FL-347 and FL-348 where applicable, that:

- i. Makes no finding concerning the date of separation or the character, value, ownership, tracing, reimbursement, or division of any asset or debt, and expressly reserves all remaining issues;
- ii. Provides the tax indemnity, health-insurance, retirement, Social Security, beneficiary, probate, individual-retirement-account, and enforcement protections authorized by Family Code section 2337;
- iii. Preserves and secures each party's disputed community interest in retirement, brokerage, digital-asset, trust, and other financial accounts pending final adjudication;
- iv. Prohibits sale, transfer, refinance, further encumbrance, or disposition of 2225 Rivera Street and 18792 Galton Lane, or distribution of proceeds relating to those properties, absent written agreement or further court order; and
- v. Requires Petitioner, as the moving party, to prepare, serve, and lodge the proposed status judgment and all protective orders for review before entry.

B. Findings and Order

- 1) The Court finds good cause to continue the hearing on Mother's Request for Order filed 2/17/2026 a second time, to **Thursday, 9/3/2026 at 9:00 AM in Dept. 404.**
- 2) At least 20 calendar days prior to the next hearing date, Mother shall file and serve a declaration to which attaches an updated Request for Separate Trial (FL-315) which lists any and all pension or retirement plans in which the community has an interest. If Mother contends the community has no interest in any pensions or retirement plans, she may write "none." Mother's declaration must also include a list of statements she was not able to include with her second declaration of

1 disclosure, as Mother stated her second disclosure contained available statements for some (but
2 not all) financial accounts. If those statements become available to Mother prior to the next
3 hearing date, Mother shall have those additional statements served on Father.

- 4 3) At least 20 calendar days prior to the next hearing date, Mother shall also file and serve an
5 updated Income and Expense Declaration which includes as attachments:

- 6 a. A schedule showing gross receipts less cash expenses for each piece of rental property;
7 b. A profit and loss statement for the last two years or a Schedule C from Mother's last
8 federal tax return for her business.

- 9 4) All other requests for documents requested by Father are denied as the Court does not find that
10 those documents are required to be served as part of Mother's Preliminary Declaration of
11 Disclosure under Family Code section 2104, and therefore those documents are not required to be
12 served before the Court can bifurcate and terminate marital status under Family Code section
13 2337(b). If Mother does not provide the additional requested information to Father voluntarily,
14 Father may serve discovery requests.

- 15 5) At least 10 calendar days prior to the next hearing date, Father may file and serve another update
16 declaration.

- 17 6) Mother's attorney shall prepare the Findings and Order After Hearing.

- 18 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
19 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
20 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
21 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
22 proposed order after hearing directly to the court. Failure to submit the order after hearing within
23 10 days may allow the other party to prepare a proposed order and submit it to the court in
24 accordance with CA Rules of Court, Rule 5.125(d).